



City of Austin

AUSTIN **CODE**
DEPARTMENT

P.O. Box 1088, Austin, TX, 78767

NOTICE OF VIOLATION

Case Number: CV-2017-135212

via Certified Mail #7017 2400 0001 0759 1295

October 25, 2017

Gilyan & Johnson Investments LLC
1000 Heritage Center Circle
Round Rock, Texas 78664-4463

RE: 7609 CREEKBLUFF DR AUSTIN TX 78750
Locally known as 7609 CREEKBLUFF DR AUSTIN TX 78750
Legally described as LOT 18 BLK C LAKEWOOD PARK SEC 4
Zoned as SF-2
Parcel Number 0147090104

Dear Gilyan & Johnson Investments LLC:

The City of Austin Code Department investigated the property described above. Austin City Code violations were found that require your immediate attention. A description of the violation(s) and compliance timeframe(s) are provided in the attached violation report.

After receipt of this Notice, and until compliance is attained, the Austin City Code prohibits the sale, lease, or transfer of this property unless:

- You provide the buyer, lessee, or other transferee a copy of this Notice of Violation; and
- You provide the name and address of the buyer, lessee, or other transferee to the Code Official.

For additional information, I can be reached at 512-974-6428 or ronald.union@austintexas.gov. Please reference **case number** CV-2017-135212. Hours of operation are: Monday – Friday, 7:30 a.m. - 4:00 p.m.

Para obtener más información, llame al 512-974-6428 o enviar un correo electrónico a ronald.union@austintexas.gov. Por favor, consulte caso número CV-2017-135212. El horario de atención es: lunes a viernes, 7:30 a.m. - 4:00 p.m.

Sincerely,

Ronald Union, Austin Code Officer
City of Austin Code Department

VIOLATION REPORT

Date of Notice: **October 25, 2017**

Code Officer: **Ronald Union**

Case Number: **CV-2017-135212**

Property Address: 7609 CREEKBLUFF DR AUSTIN TX 78750
Locally known as 7609 CREEKBLUFF DR AUSTIN TX 78750
Zoned as SF-2

The items listed below are violations of the Austin City Code, and require your immediate attention. If the violations are not brought into compliance within the timeframes listed in this report, enforcement action may be taken. Timeframes start from the Date of Notice.

Violation Type: LAND USE

Austin City Code Section: Building Permit Requirement (§25-12-241 [2015 IRC R105.1])

Description of Violation: All interior walls and ceiling area had been opened up, also exposed electrical wires. Residential construction performed without required permit(s).

Date Observed: 10/16/2017

Timeframe to Comply: 30 Day(s)

Recommended Resolution: Obtain all required permits for construction work already performed, and for any additional work to be performed at this location.

Notes: Permit violations require the permit(s) to be issued and all required inspections to be completed to attain compliance. For questions concerning land use violations, please contact the Development Services Department at 512-978-4000. You can also visit <http://www.austintexas.gov/department/development-services> for more information.

IMPORTANT INFORMATION

Failure to Correct

If the violations are not brought into compliance within the timeframes listed in the violation report, enforcement action may include:

- Criminal charges in the City of Austin Municipal Court subjecting you to fines of up to \$2,000 per violation, per day.
- Civil penalties in an Administrative Hearing subjecting you to fines of up to \$1,000 per violation, per day, along with additional fees.
- Suspension or cancellation of existing site plan, permit or certificate of occupancy. If the site plan, permit or certificate of occupancy is suspended or revoked, the utility service to this property may be disconnected.
- Civil injunctions or penalties in State court.
- For dangerous or substandard buildings, the City of Austin may also take action with the Building and Standards Commission (BSC) to order the vacation, relocation of occupants, securing, repair, removal or demolition of a building, and civil penalties.

Ownership Information

According to the records of the County, you own the property described in this notice. If this property has other owners, please provide me with this information. If you no longer own this property, you must execute an affidavit form provided by our office. This form should state that you no longer own the

property, the name of the new owner, and their last known address. The affidavit must be delivered in person or by certified mail, with return receipt requested, to the Austin Code Department office no later than 20 days after you receive this notice. If you do not submit an affidavit, it will be presumed that you own the property described in this notice.

An affidavit form is available at www.austintexas.gov/code-resources, or at the Austin Code Department office at 1520 Rutherford Lane. The completed affidavit should be mailed to: **City of Austin Code Department, P.O. Box 1088, Austin, Texas 78767.**

Appeals and Complaints

You may file a written appeal of this Notice of Violation to the Austin Code Department. Refer to the **Violation Report** attached to review the appeal process as it relates to the specific violation noted. Please reference your case number and how the property is now in compliance with the Austin City Code. An appeal may be delivered in person to our office located at 1520 Rutherford Lane or mailed to: **City of Austin Code Department, ATTN: Code Official, P.O. Box 1088, Austin, Texas 78767.**

You may file a written complaint or commendation regarding an Austin Code Department Officer no later than 3 days after you receive this notice. Please reference your case number. The complaint or commendation should be mailed to: **City of Austin Code Department, ATTN: Code Official, P.O. Box 1088, Austin, Texas 78767.**